

- RAG Learning

2.11 Comparative — The Judiciaries

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

This topic compares the UK and US judiciaries and asks you to explain the differences using the three theoretical approaches the specification requires. The comparison is unusually clean, because almost every difference traces back to a **single structural variable: entrenchment**.

The three comparative approaches run through all six sections of 3.2.2 and are examined within them — they are not a separate topic.

- **Structural** — explains differences by reference to institutions, constitutional rules and the framework actors operate within.
- **Rational** — explains differences by reference to individuals making calculated choices to advance their own interests.
- **Cultural** — explains differences by reference to shared ideas, values, beliefs and historical experience.

1. The two courts side by side

	UK Supreme Court	US Supreme Court
Created	Constitutional Reform Act 2005; opened 2009	1789, under Article III
Size	12 justices	9 justices
Appointment	Independent selection commission, on merit	Nominated by the President, confirmed by simple Senate majority

Tenure	To a mandatory retirement age	For life, during good behaviour
Power over legislation	Cannot strike down an Act of Parliament; may interpret it, or declare it incompatible with Convention rights	May declare Acts of Congress and state laws unconstitutional and void
Control of docket	Permission to appeal; narrower discretion	Writ of certiorari; grants review in a small fraction of petitions
Reversal of a ruling	An ordinary Act of Parliament suffices	Only the Court itself, or a constitutional amendment

2. The structural explanation — entrenchment

The US Constitution is codified and **entrenched**: it sits above ordinary legislation and can only be amended by a double supermajority. This gives the Court two things the UK Court has not got.

- **A higher law to enforce.** There is a standard against which statute can be measured. Since *Marbury v Madison* (1803) the Court has asserted the power to declare legislation void. UK courts have no such standard, because UK constitutional law has no status superior to ordinary law.
- **Finality.** Because amendment is practically unattainable, a US constitutional ruling can realistically be reversed only by the Court itself. A UK ruling can be reversed by a simple Commons majority — as the Judicial Review and Courts Act 2022 illustrates by reversing the *Cart* (2011) decision.

Federalism adds a second structural difference. The US Court must arbitrate between federal and state authority, which makes it the body that effectively determines the constitutional balance of the whole system. The UK Court has a smaller analogue in devolution disputes, but Parliament's sovereignty means those are ultimately resolvable politically.

Exam Tip: If you write only one sentence of structural analysis, make it this one: *the US Supreme Court is more powerful not because its judges are more assertive but because a codified, entrenched constitution gives them a higher law to enforce — given the same constitution, any court would acquire the same power.*

3. The rational explanation — why appointments are politicised

Rational choice explains something structure alone cannot: why US appointments generate ferocious political conflict and UK appointments generate almost none.

The value of the prize. A US justice can strike down legislation and serves for life, so one appointment can determine policy on abortion, guns, campaign finance and voting for thirty years or more. For a President, a senator or an interest group, capturing an appointment is therefore the cheapest available route to lasting policy influence. Heavy investment is entirely rational.

The predicted behaviour follows, and is observed:

- Presidents nominate young candidates to maximise the duration of influence.
- Justices time retirements to allow a sympathetic President to name a successor.
- Interest groups fund confirmation campaigns.
- Senators abandon procedural norms when the payoff is large enough — the refusal to consider the Garland nomination in 2016 on election-year grounds, followed by the rapid confirmation of Barrett weeks before the 2020 election.
- The filibuster for Supreme Court nominations was removed in 2017, eliminating any remaining incentive to seek cross-party support.

The UK contrast. A UK justice cannot strike down statute, faces a retirement age, and rules on questions Parliament can reverse by ordinary legislation. The return on capturing an appointment is low — and the independent Judicial Appointments Commission removes the opportunity anyway. No rational actor invests heavily in a contest with so little payoff.

4. The cultural explanation

- **A rights-based political tradition.** American political argument is characteristically framed as individual rights asserted against government, so contested moral questions — abortion, marriage, guns — become constitutional claims litigated in court rather than policy questions settled in a legislature. The Court is therefore the natural arena for national moral conflict.
- **British residual liberties and parliamentary remedy.** The UK tradition is that citizens are free to do whatever is not prohibited, and that redress is sought through Parliament. Judicial resolution

of political disputes sits less comfortably, which is part of why *Miller II* provoked such strong reaction.

- **Deference and its decline.** A culture of restraint historically kept UK judges out of overtly political questions. The Human Rights Act and a more rights-conscious legal culture have eroded that, which is why the UK Court now looks more like its US counterpart than it did in 1998.

Exam Tip: The three approaches are **complementary, not competing**. Culture explains why each country adopted the institutions it has; structure explains the constraints those institutions impose; rational choice explains how actors behave within them. Saying so explicitly is usually worth marks in a 25-mark comparative answer.

5. Similarities worth crediting

Comparative answers that describe only differences rarely reach the top band.

- **Review of executive action.** Both courts examine whether government has acted lawfully, and both have rejected claims that executive authority lies beyond judicial reach — *Miller I* and *Miller II* in the UK; *United States v Nixon* (1974) and *Youngstown Sheet & Tube v Sawyer* (1952) in the USA.
- **Rights protection.** Both have become significant rights actors — the US Court through the Bill of Rights, the UK Court through the Human Rights Act 1998.
- **Independence.** Both protect it through security of tenure and salaries insulated from political manipulation.
- **Political backlash.** Both have been accused of usurping elected politicians, and in both countries governments have responded with proposals to curb judicial power.
- **Use by pressure groups.** Groups in both systems now pursue policy goals through litigation.

6. Is the gap narrower than it looks?

A good evaluative answer tests the obvious conclusion. Three arguments suggest UK judicial influence exceeds its formal powers:

1. **Section 3 of the Human Rights Act** requires courts to read legislation compatibly with Convention rights "so far as it is possible to do so". Applied strongly, this can achieve much of what a strike-down power would, without any formal challenge to sovereignty.
2. **Declarations of incompatibility work in practice.** A declaration leaves the statute valid, but governments have almost always amended the law in response, because an authoritative public finding that the state is violating rights is politically costly to ignore — particularly with Strasbourg as a backstop.
3. **Judicial review of executive action is unqualified.** Most government activity is executive rather than legislative, so this reaches a large share of what government actually does.

The counter-consideration is decisive, though: these are influence, not power. Parliament retains the final word and has used it, narrowing judicial review remedies in 2022 and repeatedly proposing to replace the Human Rights Act.

Key cases

Case	Country	Significance
<i>Marbury v Madison</i> (1803)	USA	Established judicial review — the power to declare legislation unconstitutional
<i>Brown v Board of Education</i> (1954)	USA	Segregated schooling unconstitutional; shows a court delivering change no legislature would
<i>United States v Nixon</i> (1974)	USA	Executive privilege does not permit withholding subpoenaed evidence
<i>Dobbs v Jackson</i> (2022)	USA	Overtaken a fifty-year precedent after a shift in the Court's composition — the strongest evidence that constitutional meaning tracks appointments
<i>Factortame</i> (1991)	UK	UK courts disapplied an Act of Parliament conflicting with EU law
<i>Miller I</i> (2017)	UK	Prerogative could not be used to remove statutory rights; only Parliament could authorise Article 50

<i>Miller II</i> (2019)	UK	Prorogation unlawful where it frustrates Parliament's constitutional functions — prerogative held justiciable
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Exam framing

Exam Tip: Paper 2's comparative questions come in two forms. The 9-mark asks you to "explain and analyse three ways in which..." — make three substantiated points, and name the approach each one illustrates. The 25-mark asks you to evaluate a statement, and requires **explicit comparison throughout**: alternating UK and US material within each paragraph, not a UK section followed by a US section.